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Analysis

A. Meet and Confer

On October 21, 2025, the Court granted Defendant's Motion for Judgment on the Pleadings with leave to amend. The Court ordered that "[i]f Defendant intends to challenge the amended pleading, Defense Counsel must file a meet and confer declaration establishing the parties met and conferred in person or by telephone, as required per Code." Defense counsel filed a declaration detailing extensive efforts to meet and confer with Plaintiffs' counsel before demurring to the FAC. However, Plaintiffs' counsel completely ignored Defendant's six (6) different attempts to discuss the instant issues with the FAC. The Court finds Defendant's efforts sufficient and admonishes Plaintiffs' counsel to engage in good-faith meet and confer discussions going forward as this could avoid the need for motion practice and Court intervention on the same issues regularly before this Court. Plaintiffs' firm's lack of good-faith meet and confer efforts is particularly troubling given the staggering number of Lemon Law cases filed by Plaintiffs' firm, and resulting pleadings challenges. Similar failure to engage in meet and confer efforts could result in sanctions going forward.

B. First, Second, and Third Causes of Action – Time-Barred

Defendant argues that Plaintiffs' Song-Beverly claims are time-barred.

California Commercial Code section 2725 states in relevant part:

(1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued.
. .

(2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered. . .

(4) This section does not alter the law on tolling of the statute of limitations . . .

(Cal. U. Com. Code § 2725.)

"California courts have held that the statute of limitations for an action for breach of warranty under the Song-Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the Uniform Commercial Code: section 2725 of the Uniform Commercial Code." (Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1305–1306 (Mexia).)

On October 21, 2025, the Court granted Defendant's Motion for Judgment on the Pleadings with leave to amend finding that "the complaint appears to be barred by the statute of limitations, which gives rise to an obligation to plead specific facts showing the complaint is not time-barred." (Minute Order, 10/21/25.) The Court found that Plaintiffs' Complaint did not include any allegations concerning whether and when defects were first discovered, whether and when Plaintiffs took the vehicle in for servicing, and what happened when the vehicle was presented to the dealership for servicing. (Ibid.)

Defendant argues that the FAC is still deficient and time-barred as it still vaguely alleges that Plaintiffs "discovered Defendant's wrongful conducted alleged herein shortly before the filing of the complaint." (FAC ¶ 34.) Specifically, Paragraph 9 of the FAC states "[a]round 2019 or 2020, Plaintiff presented the Vehicle to Defendant HONDA's authorized repair facility with transmission complaints." Defendant asserts that the FAC is deficient because it does not specifically allege when this repair occurred, or why Plaintiffs do not know what year this repair attempt took place.

Defendant further argues that Plaintiffs' claims cannot support a theory of delayed discovery because the alleged defects did not manifest until well after expiration of the warranties. Defendant contends that Plaintiffs vaguely assert an initial repair visit occurring in "2019 or 2020" in the FAC and that the next repair visit alleged is dated "around" December 19, 2022. As the Subject Vehicle was purchased on May 18, 2018 and the Subject Vehicle has a new vehicle limited warranty of 3 years or 36,000 miles (see page 7 of Exhibit A to FAC), Defendant argues that this repair visit and all subsequent repair visits were outside the new vehicle limited warranty. The next alleged repair visit is dated April 4, 2024 – almost a year after the powertrain warranty expired at the five-year mark on May 18, 2023 (see page 7 of Exhibit A to FAC). (FAC ¶ 11.) Given this, Defendant argues that this repair and all subsequent repairs occurred well after expiration of the powertrain warranty.

Finally, Defendant argues that the FAC still fails to state sufficient facts demonstrating when AHM's duty (and in turn, breach) was triggered under Civil Code § 1793.2(d). Defendant contends that the FAC fails to identify when Plaintiffs first discovered these unknown defects with the vehicle, what they did to learn more about potential issues with the Subject Vehicle, and in turn, AHM's affirmative attempts to conceal this information from Plaintiffs.

In opposition, Plaintiffs argue that Honda's breach of its Song-Beverly obligations did not occur on the date of sale, as Honda argues, but upon Honda's failure to affirmatively replace or repurchase the Subject Vehicle after it failed to repair the vehicle to conform to warranty after a reasonable number of attempts. Plaintiffs also assert that a buyer may not know of a breach of Song-Beverly obligations until after (1) the buyer provides the defendant with a reasonable number of repair attempts, and (2) the defect manifests again outside the warranty period, thereby establishing that the defendant's repairs did not conform the vehicle to warranty, citing Donlen v. Ford Motor Co. (2013) 217 Cal.App.4th 138, 148-49: "post-warranty repairs have 'a tendency to establish that [a part] was not fully repaired in conformance with the express warranty' during the warranty's existence and are 'relevant to establishing [the part] was not repaired to match the warranty while the warranty was in effect.'"

Here, the FAC still fails to state sufficient facts regarding when defects were first discovered, when exactly Plaintiffs first took the vehicle in for servicing, and what happened when the vehicle was first presented to the dealership for servicing. Plaintiffs purchased the Vehicle on May 18, 2017, and filed the instant action nearly eight years later on March 14, 2025. As to when the defect was discovered, the FAC merely alleges "Plaintiffs discovered Defendant's wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following HONDA's unsuccessful attempts to repair them." (FAC, ¶ 34.) The FAC fails to identify when Plaintiffs first discovered these unknown defects with the vehicle, what they did to learn more about potential issues with the Subject Vehicle, and in turn, AHM's affirmative attempts to conceal this information from Plaintiffs. The FAC's allegations are insufficient to overcome the four-year statute of limitations bar.

While Paragraph 9 of the FAC states "around 2019 or 2020, Plaintiff presented the Vehicle to Defendant HONDA's authorized repair facility with transmission complaints," it is unclear what year this repair occurred, or why Plaintiffs do not

know what year this repair attempt took place. (FAC, ¶ 9.) The FAC itself also plainly concedes that “it is unclear what work, if any, was performed.” (Ibid.) The next repair visit alleged is dated “around” December 19, 2022. (Id. ¶ 10.) As the Subject Vehicle was purchased on May 18, 2017 and the Subject Vehicle has a new vehicle limited warranty of 3 years or 36,000 miles, this repair visit as alleged was outside the new vehicle limited warranty. The next alleged repair visit is dated April 4, 2024 – almost two years after the powertrain warranty expired at the five-year mark on May 18, 2022. (Id. ¶ 11.) Overall, the repairs alleged on April 4, 2024, May 29, 2024, October 9, 2024, and January 10, 2025, occurred well after expiration of the new vehicle limited warranty and powertrain warranty.

Although Plaintiffs argue that a buyer may not know of a breach of Song-Beverly obligations until after the buyer provides the defendant with a reasonable number of repair attempts and the defect manifests again outside the warranty period, the FAC fails to allege that Plaintiffs provided Defendant with a reasonable number of repair attempts within the warranty period. The FAC only alleges a single repair attempt within the 3-year new vehicle limited warranty period – the repair “around 2019 or 2020” which concedes that “it is unclear what work, if any, was performed.” The FAC also only alleges two repair attempts within the 5-year powertrain warranty – the repair “around 2019 or 2020” which concedes that “it is unclear what work, if any, was performed,” and the 2022 repair. This is insufficient to establish that “Plaintiffs did not, and could not have, discovered Honda’s breach of its Song-Beverly prior to Honda’s unsuccessful attempts to repair defects in the Vehicle” as Plaintiffs argue. Overall, the FAC fails to allege that the vehicle’s defects did not manifest until well after expiration of the warranties, which is necessary to claim delayed discovery.

Therefore, the demurrer to the First, Second, and Third Causes of Action is SUSTAINED on the grounds that these claims appear time-barred on the face of the FAC. Leave to amend is discussed below.

A. Fourth Cause of Action – Expiration of Implied Warranty

Defendant argues that Plaintiffs’ FAC fails to state facts sufficient to constitute a viable claim for Breach of the Implied Warranty of Merchantability in that Plaintiffs do not plead specific facts to support the allegation that the vehicle was not merchantable, as defined under Civ. Code § 1792.1, at the time of purchase or within one year thereafter.

Under the Song-Beverly Act, the duration of the implied warranty of merchantability is no more than one year:

The duration of the implied warranty of merchantability. . . shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer. Where no duration for an express warranty is stated with respect to consumer goods, or parts thereof, the duration of the implied warranty shall be the maximum period prescribed above.

(Civ. Code, §1791.1(c).)

“[T]he implied warranty exists for at least 60 days and at most for one year after delivery of the product; after that time, the warranty ceases to exist.” (Mexia, supra, 174 Cal.App.4th at p. 1309. Therefore, the implied warranty can only be breached during the duration of the warranty. (Id. at p. 294.)

However, the fact that the implied warranty has a duration of 60 days to one-year, does not mean that the plaintiff must discover the breach within that duration. “There is nothing that suggests a requirement that the purchaser discover and report to the seller a latent defect within that time period.” (Mexia, supra, 174 Cal.App.4th at p. 1310.) This is because “implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale.” (Id. at p. 1304.) To prevail on a claim for breach of the implied warranty, a plaintiff needs only show that the defect existed during the duration of the warranty, even if the latent defect was discovered at a later time. “In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery.” (Mexia, supra, 174 Cal.App.4th at p. 1310.) “Thus, by giving the implied warranty a limited prospective existence beyond the time of delivery, the Legislature created the possibility that the implied warranty could be

breached after delivery.” (Id. at p. 1309 [italics added].) Therefore, a claim for breach of the implied warranty under the Song-Beverly Act, is different “from the Uniform Commercial Code, under which the implied warranty could be breached only at the time of delivery.” (Ibid.)

“The statute of limitations for breaches of the implied warranty of merchantability is four years.” (Montoya v. Ford Motor Co. (2020) 46 Cal.App.5th 493, 495; see also (Mexia, supra, 174 Cal.App.4th at p. 1306, fn. 6 [“the statute of limitations for an action for breach of warranty under the Song-Beverly Act is four years pursuant to section 2725 of the Uniform Commercial Code.”].) “By providing a duration period for the implied warranty of merchantability, Civil Code section 1795.5, subdivision (c), contemplates that a breach may occur either when the goods are first purchased, or afterwards, when a latent defect is discovered by the buyer.” (Jones v. Credit Auto Center, Inc. (2015) 237 Cal.App.4th Supp. 1, 9.) “In the case of a latent defect, the implied warranty is breached by the existence of the unseen defect, not by its subsequent discovery.” (Mexia, supra, 174 Cal.4th 1297 at p. 1305.)

Thus, a plaintiff may bring suit within four years of discovering the latent defect if the claim is based on allegations that the latent defects existed within the one-year period but were not discovered until months or years later. (See Mexia, at p. 1305 [“Thus, although a defect may not be discovered for months or years after a sale, merchantability is evaluated as if the defect were known.”] [italics added]; Mills v. Forestex Co. (2003) 108 Cal.App.4th 625, 642 [Homeowners’ breach of implied warranties of fitness and merchantability claim against builder for latent defect in siding was subject to four-year limitations period from date of discovery of defect in siding].)

Here, based on the allegations in the FAC, delivery of the Subject Vehicle occurred on or about May 18, 2017. As the FAC fails to properly allege a latent defect, Plaintiffs’ breach of the implied warranty claim thus accrued, and the statute of limitations on the claim started running, at that point. Even extending the accrual date by one year to May 18, 2018, the statute of limitations expired for the implied warranty claim on May 18, 2022. Since the original complaint was filed on March 14, 2025, the statute of limitations on the face of the complaint had long since expired.

Therefore, the demurrer to the Fourth Cause of Action for breach of implied warranty is SUSTAINED on the grounds that this claim appears time-barred on the face of the FAC. Leave to amend is discussed below.

C. Fifth Cause of Action, Fraudulent Concealment – Time Barred

Defendant argues that Plaintiffs’ Fraud claim is barred under Code of Civil Procedure section 338(d)’s three-year statute of limitations because in the absence of specific allegations to support tolling, the statute of limitations began to run on the purchase date, May 18, 2017, and expired three years later, on May 18, 2020.

Plaintiff argues that delayed discovery tolls the statute of limitations.

Here, as discussed above, the FAC fails to properly allege delayed discovery.

Therefore, the demurrer to the Fifth Cause of Action for fraudulent concealment is SUSTAINED on the grounds that this claim appears time-barred on the face of the FAC. Leave to Amend is discussed below.

F. Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Ibid.) Where a pleading is successfully challenged on demurrer, “[t]he plaintiff has the burden of proving that an amendment would cure the defect.” (Schifando v. City of Los Angeles (2003) 31 Cal.4th 1074, 1081.)

Plaintiffs request leave to amend but provide no specifics. As leave to amend should be granted whenever there is a reasonable possibility of successful amendment, the Court is prepared to grant it. However, this would be Plaintiffs' second chance to amend the Complaint and there are glaring statute of limitations issues which may not be able to be cured. At the hearing, Plaintiffs must be prepared to explain in further detail what additional facts they will plead and exactly how they can amend to remedy the deficiencies in the FAC without making it a sham pleading. The Court will decide at the hearing whether to grant leave to file a Second Amended Complaint.

G. Conference Before Pleadings Challenge

"If a court grants a motion for judgment on the pleadings and grants leave to amend, the court may order a conference of the parties before an amended pleading, or a motion for judgment on an amended pleading, may be filed. If the conference is held, the court shall not preclude a party from filing a motion for judgment on the pleadings and the time to file a motion for judgment on the pleadings shall not begin until after the conference has concluded." (CCP § 439, subd. (c)(1).)

If leave to amend is granted, the Court orders the parties to confer via telephone or video call before filing another pleadings challenge. In the event that Plaintiffs' counsel fails to respond to meet and confer requests again, sanctions may be imposed.

CONCLUSION

Defendant's Demurrer to the First, Second, Third, Fourth, and Fifth Causes of Action is SUSTAINED as they appear to be time-barred. Leave to amend is conditioned on Plaintiffs making the requisite showing at the hearing.

Moving party to give notice.